

SUPREME COURT OF THE STATE OF NEW YORK
NEW YORK COUNTY

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KEVIN ALSTON & JOSEPH PETERSON,

Plaintiffs,

-against-

THE CITY OF NEW YORK, NYPD OFFICER
SHELDON ELLIOTT (Shield # 21027), NYPD
OFFICER ADAMS CASIANO HIDALGO (Shield # 7449)
and NYPD OFFICERS JOHN and JANE DOE #'s 1-10
(names and numbers are unknown at this time), and
Other Unidentified members of the New York City
Police Department,

Defendants.
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SUMMONS

Basis of Venue:
Place of Incident

Plaintiff Designates
New York County
as the place of trial.

To the above-named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
August 30, 2021

Respectfully submitted,

/s/ Sydney O'Hagan
Sydney O'Hagan, Esq.
40 Exchange Place
Suite 1000
New York, New York 10005
(774) 218-3461
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TO:

CITY OF NEW YORK: CORPORATION COUNSEL, 100 Church Street, New York, NY 10007

NYPD OFFICER SHELDON ELLIOTT (Shield # 21027), 23rd Precinct, 162 East 102nd Street, New York, NY 10029

NYPD OFFICER ADAMS CASIANOHIDALGO (Shield # 7449), PSA 5, 221 East 123rd Street, New York, NY 10035

SUPREME COURT OF THE STATE OF NEW YORK
NEW YORK COUNTY

-----X
KEVIN ALSTON & JOSEPH PETERSON,

Plaintiffs,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, NYPD OFFICER
SHELDON ELLIOTT (Shield # 21027), NYPD
OFFICER ADAMS CASIANO HIDALGO (Shield # 7449)
and NYPD OFFICERS JOHN and JANE DOE #'s 1-10
(names and numbers are unknown at this time), and
Other Unidentified members of the New York City
Police Department,

Defendants.

-----X
Plaintiffs **Kevin Alston and Joseph Peterson**, by their attorney, SYDNEY O'HAGAN, ESQ., as and for the

Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of Plaintiffs' rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983 and the rights secured by the First, Fourth, Fifth, Eighth, and Fourteenth Amendments to the United States Constitution the laws of the State of New York. Plaintiffs were unlawfully arrested by the defendants. Plaintiffs were deprived of their federal constitutional rights, state constitutional rights, and common law rights when the individually named police defendants subjected them to, among other things, assault, battery, false arrest, unlawful search and seizure, federal and state law malicious prosecution, negligence, gross negligence, intentional and negligent infliction of emotional distress and implementation and continuation of an unlawful municipal policy, practice, and custom.

Plaintiffs seek compensatory and punitive damages, declaratory relief, an award of costs and attorney's fees and such other relief as the Court deems just and proper.

PARTIES

2. Plaintiffs Kevin Alston and Joseph Peterson are residents of the State of New York, New York County.
3. Defendant City of New York is a municipal corporation organized under the laws of the State of New York, which violated plaintiff's rights as described herein.
4. NYPD OFFICER SHELDON ELLIOTT, assigned Shield # 21027, is employed with the 23rd Precinct, is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
5. NYPD OFFICER SHELDON ELLIOTT (Shield # 21027) is being sued in his individual capacity and official capacity.
6. NYPD OFFICER ADAMS CASIANO HIDALGO, assigned Shield # 7449, is employed with Police Service Area (PSA) 5, is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
7. NYPD OFFICER ADAMS CASIANO HIDALGO (Shield # 7449) is being sued in his individual capacity and official capacity.
8. Police Officer John Doe Number 1 is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
9. Police Officer John Doe #1 is being sued in his individual capacity and official capacity.
10. New York Police Officers John and Jane Doe #'s 2-10 are and were at all times relevant herein an officer, employee, and agent of the New York City Police Department.

11. Police Officers John and Jane Doe #'s 2-10 are being sued in his/her individual capacity and official capacity.
12. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents, and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.
13. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as agents in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.
14. Plaintiff in furtherance of his State causes of action filed a timely Notice of Claim upon the City of New York in compliance with Municipal Law Section 50.
15. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and the City of New York has failed to pay or adjust the claim.
16. The City of New York held a 50(h) hearing examination of both Plaintiffs on April 2, 2020.

STATEMENT OF FACTS

17. On November 24, 2019 at approximately 6:00 p.m. in the area of Lexington Avenue between East 109th Street and East 110th Street in New York County, New York, numerous police officers, both uniformed and plain clothed, from the 23rd Precinct, PSA 5, and other unknown police commands, including upon information and belief, defendant NYPD Officers Sheldon Elliott (Shield #21027) and Adams Casianohidalgo (Shield # 7449) and P.O. John and Jane Does #1-10, and other as yet unknown police officers, at times acting in concert and at times acting independently, committed the following illegal acts against Plaintiffs.
18. On November 24, 2019 at approximately 6:00 p.m., Plaintiffs were walking in the area of Lexington Avenue between East 109th Street and East 110th Street. They were engaged in no criminal activity at the time, nor at any time beforehand, and were simply walking down the street next to each other while talking. At that time, numerous NYPD Officers, in both plain clothes and in uniform, including, upon information and belief, NYPD Officers Sheldon Elliott (Shield #21027) and Adams Casianohidalgo (Shield # 7449), converged upon Plaintiffs and began asking them questions about a fight that Plaintiffs had not been involved in and knew nothing about. Plaintiffs informed them they had no information to provide on the subject.
19. Having committed no violations or crimes, Plaintiffs should have been free to proceed. Nevertheless, defendant NYPD Officers, including, upon information and belief, NYPD Officers Sheldon Elliott (Shield #21027) and Adams Casianohidalgo (Shield # 7449) and/or NYPD Officers Jane and/or John Doe #'s 1-10, physically accosted Plaintiffs.
20. Plaintiff Alston was thrown to the ground by one or more officers, and Plaintiff Peterson was thrown against a metal fence by one or more officers. As a result, Plaintiff Alston suffered an

injury to his hand, while Plaintiff Peterson suffered a broken tooth, broken nose, and a laceration to his head, and was, upon information and belief, knocked unconscious for a period of time.

21. At the time of their initial detention and arrest, Plaintiffs had committed no violations or crimes, and deny they committed the offense of Disorderly Conduct.
22. Once the defendant officers approached Plaintiffs, they were not free to leave. Plaintiffs were both handcuffed and transported to the 23rd Precinct.
23. Plaintiff Alston remained in custody in the 23rd Precinct for approximately 9.5 hours, and was released with a summons.
24. Plaintiff Peterson was transported from the 23rd Precinct to Harlem Hospital, where he received treatment for his broken tooth and the gash to his head. X-rays taken at the time also revealed a broken nose and closed tooth fracture. He was then transported to PSA 5, where he was released with a summons. He remained handcuffed at Harlem Hospital, and was in police custody for approximately one day.
25. During their confinement at the 23rd Precinct and PSA 5, respectively, Plaintiffs were subjected to depraved, filthy and inhumane conditions.
26. Despite knowing that the charge of Disorderly Conduct against each Plaintiff lacked any factual basis, Defendants, including Officers Elliott and Casianohidalgo falsely and maliciously pursued convictions on the summonses issued to each Plaintiff. Officer Elliott swore to and signed the summons for Plaintiff Alston, while Officer Casianohidalgo swore to and signed the summons for Plaintiff Peterson.
27. Plaintiff Alston made two court appearances before his case was dismissed on September 29, 2020. Plaintiff Peterson made three court appearances before his case was dismissed on February 5, 2020.

28. As a direct result of Plaintiff Alston's false arrest and malicious prosecution he missed two days of work, resulting in approximately \$320 in lost wages, and was terminated from the job site on which he had been working as a construction laborer.
29. As a direct result of Plaintiff Peterson's false arrest and malicious prosecution, as well as the acts of assault and battery committed upon him by defendant officers, he returned to Harlem Hospital for follow-up treatment and received a root canal and crown for on his upper left front tooth.

FIRST CAUSE OF ACTION

ASSAULT

30. Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 29 with the same force and effect as if more fully set forth herein. ^[1]_{SEP}
31. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously assaulted Plaintiffs in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the Plaintiffs, and that such acts caused apprehension of such contact in the Plaintiffs. Plaintiffs were assaulted by defendant Officers during the course of Plaintiffs' false and illegal arrest in the area of Lexington Avenue between East 109th Street and East 110th Street.
32. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York, the New York City Police Department, which are therefore responsible for their conduct. ^[1]_{SEP}
33. The City, as the employer of defendants is responsible for their wrongdoing under the doctrine of respondeat superior. ^[1]_{SEP}

SECOND CAUSE OF ACTION**BATTERY**

34. Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 33 with the same force and effect as if more fully set forth herein. ^[L]_[SEP]
35. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously battered Plaintiffs, when they, in a hostile and/or offensive manner with the intention of causing harmful and/or offensive bodily contact to the Plaintiffs and caused such battery. Plaintiff Alston was shoved to the ground with significant force by defendant officers, while Plaintiff Peterson was slammed against a metal gate by defendant officers during the course of Plaintiffs' false and illegal arrest in the area of Lexington Avenue between East 109th Street and East 110th Street.
36. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct. ^[L]_[SEP]
37. The City, as the employer of Defendants is responsible for their wrongdoing under the doctrine of respondeat superior. ^[L]_[SEP]

THIRD CAUSE OF ACTION**FALSE ARREST AND FALSE IMPRISONMENT**

38. Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 37 as if fully set forth herein.
39. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine Plaintiffs and, in fact, confined

Plaintiffs, and Plaintiffs were conscious of the confinement. In addition, Plaintiffs did not consent to the confinement and the confinement was not otherwise privileged.

40. The individually named defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
41. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

FOURTH CAUSE OF ACTION

MALICIOUS PROSECUTION

42. Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 41 with the same force and effect as if more fully set forth at length herein.
43. The acts and conduct of the defendants constitute malicious prosecution under the laws of the State of New York.
44. Defendants commenced and continued a criminal proceeding against Plaintiffs with malice and without probable cause, caused them a serious deprivation of liberty as a result, and Plaintiffs obtained a favorable termination on the fabricated charges.
45. Defendants commenced and continued a criminal proceeding against Plaintiffs.
46. There was actual malice and an absence of probable cause for the criminal proceeding against Plaintiffs and for the charge for which they were prosecuted.
47. The prosecution and criminal proceedings terminated favorably to Plaintiff Alston on September 29, 2020, and to Plaintiff Peterson on February 5, 2020.
48. Plaintiffs were subjected to a post-arraignment deprivation of liberty sufficient to implicate their state constitutional and tort rights.

49. The individually named defendant Police Officers were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

FIFTH CAUSE OF ACTION

NEGLIGENT HIRING, RETENTION, TRAINING AND SUPERVISION

50. Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 49 with the same force and effect as if more fully set forth at length herein.
51. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise the individually named defendants, individuals who were unfit for the performance of NYPD duties.

SIXTH CAUSE OF ACTION

FAILURE TO INTERVENE

52. Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 51 with the same force and effect as if more fully set forth at length herein.
53. Defendants had an affirmative duty to intervene on behalf of Plaintiffs, whose constitutional rights were being violated in their presence by other members of the NYPD, committing acts of assault and battery upon Plaintiffs and subjecting Plaintiffs to unlawful search and seizure.
54. Defendants failed to intervene to prevent the unlawful conduct described herein despite having had a reasonable opportunity to do so, and full knowledge of the unlawful conduct.
55. As a result of the foregoing, Plaintiffs were subjected to an illegal search and undue force upon their persons over the course of their false arrests.

56. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York, the New York City Police Department, which are therefore responsible for their conduct.
57. The City, as the employer of defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

SEVENTH CAUSE OF ACTION

NEGLIGENCE

58. Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 57 with the same force and effect as if more fully set forth at length herein.
59. Defendants owed a duty of care to Plaintiffs.
60. Defendants breached that duty of care by subjecting them to an illegal search and undue force and unprivileged deprivation of their liberty without sufficient or any cause to do so.
61. As a direct and proximate cause of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.
62. All of the foregoing occurred without any fault by Plaintiffs.
63. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

EIGHTH CAUSE OF ACTION

INTENTIONAL AND NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS

64. Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 63 with the same force and effect as if more fully set forth at length herein.
65. By the actions described herein, the individually named police officer defendants, each acting individually and in concert with one another, engaged in extreme and outrageous conduct, conduct

utterly intolerable in a civilized community, which negligently caused severe emotional distress to Plaintiffs. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiffs and violated Plaintiffs' statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

- 66. As a result of the foregoing, Plaintiffs were deprived of liberty and sustained great emotional injuries.
- 67. The City, as the employer of the defendants, is responsible for their wrongdoing under the doctrine of respondeat behavior.

FEDERAL CLAIMS

FIRST CLAIM FOR RELIEF

DEPRIVATION OF FEDERAL RIGHTS UNDER 42 U.S.C. § 1983

- 68. Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
- 69. All of the aforementioned acts of defendants ELLIOTT and CASIANO HIDALGO and NYPD OFFICERS JOHN and JANE DOE" #1-10, their agents, servants, and employees, were carried out under the color of state law.
- 70. All of the aforementioned acts deprived Plaintiffs of their rights, privileges, and immunities guaranteed to citizens of the United States by the First, Fourth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.
- 71. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers with all the actual and/or apparent authority attendant thereto.
- 72. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules

of the City of New York, the New York City Police Department, all under the supervision of ranking officers of said department.

73. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

SECOND CLAIM FOR RELIEF

USE OF EXCESSIVE FORCE UNDER 42 U.S.C. § 1983

74. Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
75. Defendants ELLIOTT and CASIANO HIDALGO, and POLICE OFFICERS “JOHN DOE” #1-10 used excessive force in assaulting Plaintiffs at the time of their detention in violation of Plaintiff’s rights under the Fourth Amendment to the United States Constitution to be free of the use of excessive force.
76. Defendants ELLIOTT and CASIANO HIDALGO, and POLICE OFFICERS “JOHN DOE” #1-10 committed the intentional torts of assault and battery against Plaintiffs by slamming Plaintiff Alston to the ground, injuring his finger, and slamming Plaintiff Peterson against a metal fence, causing, *inter alia*, a broken tooth, a tooth fracture, a broken nose and a head wound.
77. In so doing, the conduct of Defendants ELLIOTT and CASIANO HIDALGO, and POLICE OFFICERS “JOHN DOE” #1-10 went well beyond the reasonable force necessary to detain and arrest Plaintiffs, and the amount of force that a reasonable officer under the same or similar circumstances would use.
78. At the time that Defendants ELLIOTT and CASIANO HIDALGO, and POLICE OFFICERS “JOHN DOE” #1-10 detained Plaintiffs, they were not fleeing, resisting arrest, acting in a threatening or menacing manner. Plaintiffs were not carrying or displaying weapons or any

dangerous instruments. They were simply walking down the street, talking to each other. No orders were given by Police Officer Defendants to the Plaintiffs to stop, remain in place, or otherwise act in a manner that failing to comply would in any way justify the use of physical force, let alone the extreme and outrageous physical contact Defendant Officers subjected Plaintiffs to at the time of their detention and arrest.

79. As a result of the foregoing, Plaintiffs' were the victims of the torts of assault, and battery resulting in injuries to each, their liberty was restricted for an extended period of time, they were put in fear for their safety, and were humiliated and subjected to handcuffing and other physical restraints without probable cause.

THIRD CLAIM FOR RELIEF

FALSE ARREST UNDER 42 U.S.C. § 1983

80. Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
81. As a result of the aforesaid conduct by defendants ELLIOTT and CASIANO HIDALGO, and POLICE OFFICERS "JOHN DOE" #1-10, Plaintiffs were subjected to an illegal, improper, and false arrest by the defendants ELLIOTT and CASIANO HIDALGO, and POLICE OFFICERS "JOHN DOE" #1-10, taken into custody and caused to be falsely imprisoned, detained, and confined, without any probable cause, privilege or consent.
82. As a result of the foregoing, Plaintiffs' liberties were restricted for an extended period of time, they were put in fear for their safety, and were humiliated, searched, and subjected to handcuffing and other physical restraints, without probable cause.

FOURTH CLAIM FOR RELIEF**UNLAWFUL SEARCH UNDER 42 U.S.C. § 1983**

83. Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
84. Plaintiff was searched by defendants ELLIOTT and CASIANO HIDALGO, and POLICE OFFICERS “JOHN DOE” #1-10 without an individualized reasonable suspicion that Plaintiffs had committed any crime or were in possession of any illicit contraband, illegal weapons, or any other illegal substances.
85. As a result of the aforesaid conduct by defendants ELLIOTT and CASIANO HIDALGO, and POLICE OFFICERS “JOHN DOE” #1-10 Plaintiffs’ persons were illegally and improperly searched without consent, a valid warrant, probable cause, and a specific articulable factual basis supporting a reasonable suspicion and/or probable cause to believe Plaintiffs were in possession of contraband or any illegal substance as set forth in the Fourth, Fifth, and Fourteenth Amendments to the Constitution of the United States. Plaintiffs repeatedly told defendants that they were not consenting to a search at the time of their arrest.
86. As a result of the foregoing, Plaintiffs were deprived of their Constitutional rights and have suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment and humiliation.

FIFTH CLAIM FOR RELIEF**DENIAL OF CONSTITUTIONAL RIGHT TO FAIR TRIAL UNDER 42 U.S.C. § 1983**

87. Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

88. Defendants ELLIOTT and CASIANO HIDALGO, and POLICE OFFICERS “JOHN DOE” #1-10 created false evidence against Plaintiffs, alleging that they committed acts of Disorderly Conduct when no such acts actually occurred.
89. Defendants ELLIOTT and CASIANO HIDALGO, and POLICE OFFICERS “JOHN DOE” #1-10 continued to prosecute the cases against Plaintiffs over the course of numerous court appearances by failing to inform the court that the summonses should be dismissed against each Plaintiff and/or by appearing in court to testify against Plaintiffs and continuing to allege Plaintiffs committed acts of Disorderly Conduct, when, in fact, they did not have probable cause to arrest Plaintiffs for said offenses.
90. Defendants ELLIOTT and CASIANO HIDALGO, and POLICE OFFICERS “JOHN DOE” #1-10 misled the court by creating false evidence against Plaintiffs and thereafter providing the aforementioned false statements throughout the criminal proceedings.
91. In creating false evidence against Plaintiffs, in forwarding false evidence and information to the court, and in providing false and misleading sworn statements, defendants ELLIOTT and CASIANO HIDALGO, and POLICE OFFICERS “JOHN DOE” #1-10 violated Plaintiffs’ constitutional right to a fair trial under the Sixth Amendment and the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.
92. As a result of the foregoing, Plaintiffs’ liberty was restricted for an extended period of time, they were put in fear for their safety, and were humiliated and subjected to handcuffing and other physical restraints without probable cause.

SIXTH CLAIM FOR RELIEF

FAILURE TO INTERCEDE UNDER 42 U.S.C. § 1983

93. Plaintiffs repeat, reiterate, and reallege each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

94. Defendants ELLIOTT and CASIANO HIDALGO, and POLICE OFFICERS “JOHN DOE” #1-10 had an affirmative duty to intercede when Plaintiffs’ constitutional rights were being violated in defendants’ presence by the misrepresentation and falsification of evidence regarding the circumstances surrounding plaintiffs’ arrest throughout all phases of the criminal proceedings.
95. Defendants ELLIOTT and CASIANO HIDALGO, and POLICE OFFICERS “JOHN DOE” #1-10 further violated plaintiffs’ constitutional rights when they failed to intercede and prevent the violation or further violation of Plaintiffs’ constitutional rights and the injuries or further injuries caused as a result of said failure.
96. As a result of the defendants’ failure to intercede when Plaintiffs’ constitutional rights were being violated in defendants’ presence, plaintiffs sustained, *inter alia*, emotional injuries, plaintiffs’ liberty was restricted for an extended period of time, they were put in fear for their safety, and they were humiliated and subjected to handcuffing and other physical restraints, without probable cause.

SEVENTH CLAIM FOR RELIEF

MALICIOUS PROSECUTION UNDER 42 U.S.C. § 1983

97. Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
98. Defendants ELLIOTT and CASIANO HIDALGO, and/or POLICE OFFICERS “JOHN or JANE DOE” #1-10 misrepresented and falsified evidence before the New York County Court – Summons Part, including false allegations that Plaintiffs committed any illegal actions, including acts of Disorderly Conduct.
99. Defendants ELLIOTT and CASIANO HIDALGO, and/or POLICE OFFICERS “JOHN or JANE DOE” #1-10 did not make a complete and full statement of facts to the New York County Court – Summons Part.

100. Defendants ELLIOTT and CASIANO HIDALGO, and/or POLICE OFFICERS “JOHN or JANE DOE” #1-10 withheld exculpatory evidence from the New York County Court – Summons Part.
101. Defendants ELLIOTT and CASIANO HIDALGO, and/or POLICE OFFICERS “JOHN or JANE DOE” #1-10 were directly and actively involved in the initiation of criminal proceedings against Plaintiffs.
102. Defendants ELLIOTT and CASIANO HIDALGO, and/or POLICE OFFICERS “JOHN or JANE DOE” #1-10 lacked probable cause to initiate criminal proceedings against Plaintiffs.
103. Defendants ELLIOTT and CASIANO HIDALGO, and/or POLICE OFFICERS “JOHN or JANE DOE” #1-10 acted with malice in initiating criminal proceedings against Plaintiffs.
104. Defendants ELLIOTT and CASIANO HIDALGO, and/or POLICE OFFICERS “JOHN or JANE DOE” #1-10 were directly and actively involved in the continuation of criminal proceedings against Plaintiffs.
105. Defendants ELLIOTT and CASIANO HIDALGO, and/or POLICE OFFICERS “JOHN or JANE DOE” #1-10 lacked probable cause to continue criminal proceedings against Plaintiffs.
106. Defendants ELLIOTT and CASIANO HIDALGO, and/or POLICE OFFICERS “JOHN or JANE DOE” #1-10 acted with malice in continuing criminal proceedings against Plaintiffs.
107. Defendants ELLIOTT and CASIANO HIDALGO, and/or POLICE OFFICERS “JOHN DOE” #1-10 misrepresented and falsified evidence throughout all phases of the criminal proceedings.
108. Specifically, Defendants ELLIOTT and CASIANO HIDALGO, and/or POLICE OFFICERS “JOHN DOE” #1-10 made the aforementioned false and misleading allegations regarding the circumstances surrounding Plaintiffs’ arrest.
109. Notwithstanding the perjurious and fraudulent conduct of Defendants ELLIOTT and CASIANO HIDALGO, and/or POLICE OFFICERS “JOHN DOE” #1-10, the criminal proceedings

were terminated in Plaintiff Alston's favor on September 29, 2020, and Plaintiff Peterson's favor on February 5, 2020.

110. As a result of the foregoing, Plaintiffs' liberty was restricted for an extended period of time, they were put in fear for their safety, they suffered economic damages, and they were humiliated and subjected to handcuffing and other physical restraints without probable cause.

EIGHTH CLAIM FOR RELIEF

DENIAL OF FIRST AMENDMENT RIGHTS UNDER 42 U.S.C. § 1983

111. Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
112. Defendants ELLIOTT and CASIANO HIDALGO, and POLICE OFFICERS "JOHN DOE" #1-10 illegally retaliated against Plaintiffs for engaging in speech that is Constitutional protected under the First Amendment to the United States Constitution.
113. Defendants ELLIOTT and CASIANO HIDALGO, and POLICE OFFICERS "JOHN DOE" #1-10 committed the intentional torts of assault and battery against Plaintiffs, and subjected Plaintiffs to false arrest and malicious prosecution as a direct result of Plaintiffs' telling Defendants ELLIOTT and CASIANO HIDALGO, and POLICE OFFICERS "JOHN DOE" #1-10, in sum and substance to leave them alone, to stop harassing them, and informing them that Plaintiffs did not know about the crime Defendant Officers questioned Plaintiffs about.
114. Defendants ELLIOTT and CASIANO HIDALGO, and POLICE OFFICERS "JOHN DOE" #1-10 misled the court by creating false evidence against Plaintiffs and thereafter providing the aforementioned false statements throughout the criminal proceedings in direct and illegal retaliation for Plaintiffs' engaging in protected acts of speech.

115. As a result of the foregoing, Plaintiffs' liberty was restricted for an extended period of time, they were put in fear for their safety, and were humiliated and subjected to handcuffing and other physical restraints without probable cause.

NINTH CLAIM FOR RELIEF

MUNICIPAL LIABILITY UNDER 42 U.S.C. § 1983

116. Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

117. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

118. The aforementioned customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department include, but are not limited to, the following unconstitutional practices:

- A. arresting individuals regardless of probable cause in order to inflate the officer's arrest statistics; and,
- B. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing; and,
- C. fabricating evidence in connection with their arrest/prosecution in order to cover up police misconduct; and,
- D. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing and regardless of probable cause, for the purpose of obtaining overtime compensation; and

E. failing to take reasonable steps to control and/or discipline police officers who lie, fabricate evidence, and/or commit perjury in order to cover up police misconduct and/or inflate arrest statistics.

119. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of the plaintiffs.

120. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by the plaintiffs as alleged herein.

121. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by the Plaintiffs as alleged herein.

122. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the Plaintiffs' constitutional rights.

123. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of the Plaintiffs' constitutional rights.

124. The acts complained of deprived the Plaintiffs of their right:

F. Not to be deprived of liberty without due process of law;

G. To be free from seizure and arrest not based upon probable cause;

H. Not to have summary punishment imposed upon them; and

I. To receive equal protection under the law.

WHEREFORE, KEVIN ALSTON AND JOSEPH PETERSON, Plaintiffs,

demands a judgment against the defendants on each cause of action in amounts to be determined upon the trial of this actions which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorney's fees inclusive of costs and disbursements of this action, interest and such other relief as appropriate under the law.

Dated: New York, New York
August 30, 2021

Respectfully submitted:

By: /s/ Sydney O'Hagan
Sydney O'Hagan, Esq.
40 Exchange Place
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New York, New York 10005
(774) 218-3461
sydney.ohagan@gmail.com

TO:

CITY OF NEW YORK: CORPORATION COUNSEL, 100 Church Street, New York, NY 10007

NYPD OFFICER SHELDON ELLIOTT (Shield # 21027), 23rd Precinct, 162 East 102nd Street, New York, NY 10029

NYPD OFFICER ADAMS CASIANOHIDALGO (Shield # 7449), PSA 5, 221 East 123rd Street, New York, NY 10035

ATTORNEY'S VERIFICATION

I, **SYDNEY O'HAGAN**, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am attorney at the law firm of **SYDNEY O'HAGAN, ESQ.**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters wherein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff's is that Plaintiff is out of the county.

DATED: New York, New York
August 30, 2021

/s/ Sydney O'Hagan
Sydney O'Hagan, Esq.